

		been had in accordance with the terms of the agreement, providing the applicant for the stay is not in default in proceeding with such arbitration. (9 U.S.C., § 3.) Where the court orders arbitration of only some pending claims, the court has discretion to stay all proceedings. (<i>See, e.g., Moses H. Cone Memorial Hosp. v. Mercury Constr. Corp.</i> (1983) 460 U.S. 1, 22-23; <i>U.S. for Use and Benefit of Newton v. Neumann Caribbean Intern., Ltd.</i> (9th Cir. 1985) 750 F.2d 1422, 1426-1427.) Here, the court finds overlapping issues of fact and law between those arbitrable claims and those litigated by the heirs. For this reason, the court exercises its discretion to stay this action pending arbitration. The court sets an ADR Review Hearing for February 23, 2027, at 9:00 a.m. in this Department. Defendant is ordered to give notice.
8	Acuahuitl vs. Nissan North America, Inc.	TENTATIVE RULING: <u>Lawsuit for Exception and Motion for Dismissal</u> Plaintiff Norberto Coyomani Acuahuitl files a “Lawsuit for Exception and Motion for Dismissal.” For the following reasons, the motion is DENIED. “A notice of motion must state in the opening paragraph the nature of the order being sought and the grounds for issuance of the order.” (Cal. Rules Ct., Rule 3.1110(a).) In addition, the memorandum supporting each motion “must contain a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases and textbooks cited in support of the position advanced.” (Cal. Rules Ct., Rule 3.1113(b).) Here, the court cannot determine what relief Plaintiff seeks or the ground(s) for that requested relief. To the extent Plaintiff’s motion opposes Defendant Santander’s previously filed demurrer to the purported FAC, that demurrer is no longer pending, thereby rendering Plaintiff’s “motion” moot.

		Defendant to give notice.
9	Business Buyers, Inc. vs. Thomas Lee Food and Cuisine, LLC	OFF CALENDAR
10	Crowe vs. Dang	TENTATIVE RULING: <u>Motion for Relief</u> Plaintiffs Lowell R. Crowe, Jr. and Tamela Crowe move for leave to file a Second Amended Complaint (SAC). Defendants Natasha Benesch and Sameer Dang oppose the motion. For the following reasons, the motion is GRANTED. Plaintiffs shall file the SAC by September 9, 2026. On September 24, 2025, the Court sustained the demurrer filed by Defendant Natasha Benesch Dang and the joinder filed by Defendant Sameer Dang to the seventh cause of action in the First Amended Complaint (FAC). (ROA 97.) The seventh cause of action was for breach of contract. While the FAC claimed to have attached as Exhibit 1 a copy of the Residential Purchase Agreement, the FAC did not contain any exhibits. Thus, the Court sustained the demurrer to that cause of action. (Id.) The September 24, 2025, minute order stated, “Should Plaintiff desire to file an amended complaint that addresses the issues in this ruling, Plaintiff shall file and serve the amended complaint within 30 days of service of the notice of ruling.” Plaintiff did not timely file a Second Amended Complaint. In the meantime, other Defendants – Elite Group Property Inspection Service, Inc. and Don McMahon – moved to compel arbitration. On January 28, 2026, this Court granted the motion to compel arbitration filed by Defendants Elite Group Property Inspection Service, Inc. and Don McMahon. (ROA 130.) The Court stayed this action pending the outcome of the arbitration between Plaintiffs and Defendants Elite Group Property Inspection Service, Inc. and Don McMahon. Plaintiff now seeks leave to file a Second Amended Complaint (SAC) to address the Court’s September 24, 2025, ruling. Defendants contend that this motion is prohibited in light of the arbitration stay ordered by the Court.